IN THE DISTRICT COURT OF APPEAL OF FLORIDA
FIRST DISTRICT

CASE NO. 1D2025-1391
(Lower Tribunal Case No. 01-2023-CA-001731)

FLORIDA HOME INSTALLATIONS, LLC,
RYAN L. MAGILL and DUANE A. WELCOME,
Appellants,

v.

TIMOTHY R. TISON,
Appellee.

APPELLEE'S ANSWER BRIEF

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JURISDICTIONAL STATEMENT

The lower court entered a Final Judgement on May 6, 2025, (R. 832-34) and denied Defendants' Motion for a New Trial on May 7, 2025. (R. 835-36). Defendants filed a notice of appeal on June 5, 2025. (R. 849-57).

This Court has jurisdiction. Fla. R. App. P. 9.110(b).

ISSUES PRESENTED

1. Whether the trial court abused its discretion by permitting evidence concerning unavailable accident evidence and by giving a permissive adverse-inference instruction whether Defendants had received an express preservation request, the truck and trailer later became unavailable, comparative fault remain disputed, and Defendants were permitted to explain the circumstances of the missing evidence.

2. Whether the trial court abused its discretion in denying Appellants' motion for new trial based on allegedly improper closing argument where the challenged remarks were either proper arguments or, with one exception, were not contemporaneously objected to and did not satisfy the requirements of *Murphy v. International Robotic Systems, Inc.*

STATEMENT OF THE CASE AND FACTS

I. The Collision

On June 21, 2021, Appellee Timothy R. Tison was operating his 2004 Suzuki motorcycle eastbound on N.W. 39th Avenue in Gainesville, Florida. (A. 947, 950). Appellant Duane A. Welcome was traveling westbound on the same roadway in a 2006 Ford F-250 pickup truck while towing a 2009 twelve-foot aluminum trailer. (A. 396, 651). Welcome was working at the time for Appellant Florida Home Installations, LLC and was using a truck and trailer owned by Appellant Ryan L. Magill while making appliance deliveries. (A. 394-95, 411).

N.W. 39th Avenue consists of one eastbound and one westbound lane in the area of the collision, and the posted speed limit is 55 miles per hour. (A. 646, 949). Photographs depicting the roadway and surrounding area were introduced at trial. (R. 727-734, 2199-2202).

While traveling westbound, Welcome decided to turn left across the eastbound lane onto N.W. 129th Drive. (A. 396, 399-400). He testified that he came to a stop before beginning the turn and he never saw Tison approaching him from the opposite direction. (A. 400). He also testified that he believed the applicable speed limit was 45 miles per hour, although the posted limit was 55 miles per hour. (A. 399, A. 646).

Tison was approaching eastbound at approximately 45 to 50 miles per hour, below the posted speed limit. (A. 949). When the truck turned across his lane, Tison applied his brakes and attempted to avoid the collision. (A. 950-51). He succeeded in avoiding the truck itself but struck the front passenger-side portion of the trailer being towed behind it. (A. 954). Photographs introduced at trial depicted the resulting damage to the trailer and motorcycle. (R. 2190-2197).

The collision caused substantial damage to Tison's motorcycle and resulted in injuries to the right side of his body, including his hand, arm and knee. (A. 961-64, 972). He had a severe compound open fracture of his right hand as well as a dislocated elbow and commuted multiple fragmented fracture of his right forearm. (A. 425-30). Every finger in his right hand was fractured. (Id., A. 879). Tison was transported from the scene by ambulance for emergency treatment. (A. 959). Three emergency surgeries were performed within the first three days. (A. 432, 459-61, 881-83). Photographs introduced at trial depicted Tison's bodily injuries. (R. 2212-2233). X-rays were also introduced showing the fractured bones as well as plates, screws and other hardware placed in Mr. Tison. (R. 2235-2328).

Before trial, Appellants admitted negligence and admitted that the collision caused permanent injuries to Tison's right hand and arm, as well as injuries to his knee. (R. 472, 652, 688). Thus, the jury was not asked to determine whether Appellants were negligent or whether the collision caused those injuries. The issues remaining for trial were Appellee's comparative negligence, if any, and the amount of his damages.

II. Preservation Requests and Subsequent Unavailability of Evidence

Ten days after the collision, on July 1, 2021, Appellee's counsel sent a letter of representation to Appellant's insurer, Auto-Owners Insurance Company. (R. 689). In addition to requesting insurance information, the letter requested that the vehicle owner and insured preserve the involved vehicle—and, if a tractor-trailer was involved, both the tractor and trailer "for our inspection." (R. 689). The letter further requested preservation of "all evidence related to the vehicle(s) involved," including, but not limited to, data-recorder reports, video, computer memory chips, electronic files, trip logs, maintenance records, log books, investigative reports, and photographs. (R. 689).

Defendant Owner, Magil, later testified that he received the letter from Auto-Owners. (A. 1170).

On March 31, 2022, while the preservation request remained in effect, the truck and trailer were involved in an unrelated accident. (A. 1174, 1325-26). Magill testified that the trailer hydroplaned, causing the truck to spin into a ditch, and that both the truck and trailer were totaled and towed from the scene. (A. 1174). He did not know what happened to them thereafter. (A. 1174).

Appellee filed suit on Mach 22, 2023. (R. 33-35). Thus, by the time formal discovery procedures were available in the litigation, the truck and trailer were no longer available for inspection.

Magill acknowledged at trial that neither he nor anyone acting for the defense preserved the vehicle data requested in the July 1, 2021 letter. (A. 1180). He testified that he did not understand the preservation request to mean that he could no longer use the truck and trailer and he relied on others for guidance concerning the request. (A. 1181).

Magill had also taken photographs at the scene of the June 21, 2021 collision. (A. 1167). At least one of those photographs depicted what Magill believed may have been skid marks on the roadway. (A. 1182-83). On May 1, 2023, Plaintiff specifically requested production of “[a]ll photographs of the scene of the accident.” (R. 69-71). Magill responded on October 30, 2023, “None in possession.” (R. 141-142). When Magill was deposed on

February 16, 2024, however, he testified that the photographs were probably on his old cellular telephone and stated that providing them would be “no problem.” (R. 1469-70). He also testified that he believed he had already provided the photographs to his attorney. (R. 1469-70). The photographs were never produced. Magill later testified that he lost them when he turned in his old telephone after obtaining a replacement. (A. 1174-75).

III. Evidence Concerning the Unavailable Material at Trial

During trial, both parties’ accident-reconstruction experts were permitted to address what information was unavailable to them and whether the information would have assisted their analyses.

Plaintiff’s reconstruction expert, Dr. Farhad Booeshaghi, testified that he could not inspect the trailer because it was no longer available. (A. 648-49, 652). As a result, he could not take certain measurements from the trailer that otherwise could have been incorporated into his analysis. (A. 652). He also testified that the 2006 Ford F-250 contained a data recorder and that there was at least a possibility that information concerning the collision could have been recorded. (A. 682, 685). When asked whether preserved data could have assisted in resolving disputed issues, Dr. Booeshaghi testified that it would have provided additional data for

consideration and may have assisted his opinions and calculations. (A. 682-83).

Appellant's reconstruction expert, Paul Mantalbano, offered a different opinion. He testified that the absence of the truck, trailer, and black-box data did not disadvantage his reconstruction. (A. 1091-92, 1115-16). In his opinion, because the truck's airbags did not deploy, any continuously recorded information would not have been permanently stored and would have been overwritten almost immediately. (A. 1115-16). He also testified that physically inspecting the trailer would not have materially assisted his analysis because the collision involved a side-swipe impact and photographs were available. (A. 1091-92).

Montalbano did, however, testify that photographs depicting skid marks at the scene could have been useful in determining braking distance, identifying the area of impact, and refining his calculations. (A. 1121-22).

The jury also heard Magill's explanation for why the truck and trailer were no longer available. Magill described the subsequent accident and testified that the resulting loss of the vehicle was unintentional. (A. 1174). He likewise testified concerning the photographs he had taken at the original accident scene and explained the circumstances behind losing

them when he traded in his cellular phone. (A. 1167-69, 1174-75). He denied intentionally destroying those photographs. (A. 1184).

IV. The Trial Court's Handling of the Missing-Evidence Issue

Appellee filed a motion concerning the unavailable evidence on April 6, 2025, the evening before trial, requesting alternative relief that included sanctions, an adverse-inference instruction, and a burden-shifting presumption. (R. 707-15). Defendants objected to any spoliation instruction, arguing among other things that the loss was inadvertent, that Plaintiff had not previously requested an inspection, and the unavailable evidence had not prejudiced Plaintiff's reconstruction because neither side had access to it. (A. 620-24, 633-35).

The trial court allowed the evidence to develop during the trial and considered the parties' competing positions concerning the significance of the unavailable materials. The court ultimately declined to give the broader relief Appellee had requested. It did not strike any defense or give a burden-shifting presumption. The court also declined to include Magill's missing accident-scene photographs within the adverse-inference instructions, ruling that any instruction would be limited to the truck and trailer. (A. 1275, 1286).

Before the jury was instructed, the parties agreed to a stipulation concerning the preservation issue. The court read the stipulation to the jury, stating that the parties agreed: (1) Defendants received Plaintiff's July 1, 2021 letter providing notice of a duty to maintain and preserve the subject truck, trailer, and data; (2) Defendants subsequently failed to preserve the truck, trailer, and data when the vehicle was inadvertently totaled in the March 31, 2022 accident; and (3) Plaintiff had not requested an inspection of the vehicle or released Defendants from the preservation duty before the March 31, 2022 accident. (A. 1325-26).

The court then gave a permissive adverse-inference instruction modeled on Florida Standard Jury Instruction 301.11(a):

> If you find that the defendants destroyed or otherwise caused the subject Ford F-250 truck and trailer to be unavailable while it was in their possession, custody or control, and the truck and trailer would have been material in deciding the disputed issues in this case, then you may, but are not required to do so, infer that this evidence would have been unfavorable to the defendants. You may consider this together with the other evidence in determining the issues in this case.
>
> (A. 1330)

Thus, the instruction required the jury to determine whether the truck and trailer were material to the disputed issues and left entirely to the jury whether any adverse inference should be drawn. Appellants remained free to explain the circumstances surrounding the vehicle's subsequent collision

and disposal and to argue that no adverse inference should be drawn, which they did.

Appellants' counsel argued in closing argument that Appellee could have sought an inspection or download earlier; that Defendant Owner Magill did not intentionally wreck or dispose of the truck; that the absence of the truck, trailer, and black box data did not prejudice Plaintiff because "both experts were on the same footing;" and that the black box would have recorded useful information from an impact involving the trailer rather than the truck. (A. 1395-98). Counsel likewise explained that the missing scene photographs had been lost inadvertently and emphasized that the trial court's adverse instruction did not encompass those photographs. (A. 1396-97).

The jury heard both Plaintiff's position concerning the unavailable evidence and Defendants' competing explanations concerning responsibility for its loss, its materiality, and any resulting prejudice before deciding whether to draw the permissive inference authorized by the court's instruction.

V. Closing Argument and Post-Trial Proceedings

During closing argument, defense counsel relied in part on Mr. Tison's pharmacy records and the reduction in pain-medication

prescriptions during a later period. (A. 1391). In response, Plaintiff's counsel referred to evidence that Mr. Tison had lost his employment and associated benefits and suggested that his medical appointments thereafter slowed. (A. 1407). Defendants objected. At sidebar, the trial court directed Plaintiff's counsel to remove the demonstrative being displayed and move on, and counsel complied. (A. 1407-08).

Plaintiff's counsel also discussed Mr. Tison's noneconomic damages, referring to them as "human damages" and identifying pain, suffering, disability, physical impairment, disfigurement, mental anguish, inconvenience, and loss of capacity for enjoyment of life. (A. 1375-76). Counsel further addressed Mr. Tison's loss of motorcycle riding and the social community associated with that activity, comparative fault, and Defendants' positions concerning mitigation and damages. (A. 1349-50, 1367, 1378, 1383, 1411, 1413-14, 1416). Appellants did not contemporaneously object to the statements they now characterize on appeal as improper "human damages," Golden Rule, "conscience of the community," denigration, or burden-shifting arguments. (A. 1349-50, 1367, 1378, 1383, 1411, 1413-14, 1416).

The jury thereafter returned its verdict on the disputed issues of comparative fault and damages. (R. 769-70). Appellants moved for a new

trial, asserting, among other grounds, the trial court's treatment of the unavailable evidence and alleged improprieties during Appellee's closing argument. (R. 803-28). The trial court denied the motion. (R. 835-36).

SUMMARY OF THE ARGUMENT

The final judgment should be affirmed because Appellants have not demonstrated that the trial court abused its discretion either in its treatment of the unavailable evidence or in denying a new trial based upon Plaintiff's closing argument.

As to the unavailable truck and trailer, Appellants conflate the limited, permissive adverse inference authorized by Florida Standard Jury Instruction 301.11(a) with substantially stronger spoliation sanctions and presumptions. The trial court did not strike a defense, exclude a witness, shift the burden of proof, or conclusively establish any fact. It instructed the jury only that it may, but was not required to, draw an unfavorable inference if it first found that the truck and trailer became unavailable while within Appellants' possession or control and were material to the disputed issues. The record supplied a sufficient basis for that determination. Magill received a written request to preserve the truck and trailer shortly after the collision; the parties stipulated that the evidence later became unavailable in an inadvertent subsequent accident; and the parties' reconstruction

experts offered competing testimony concerning the significance of the unavailable evidence to the comparative-negligence issue actually being tried.

Appellants' related arguments do not establish reversible error. Their "equal footing" authorities involved materially more severe sanctions and do not establish that an inference is unavailable merely because both sides ultimately lacked access to the evidence. Appellants were free to argue, and did argue, that neither side was disadvantaged and that the evidence would have added nothing.

Nor did Plaintiff waive the preservation issue by failing to arrange a voluntary presuit inspection where he had expressly requested preservation and the parties stipulated that he had not released that request before the evidence was lost. Although Plaintiff's motion was filed late, the trial court did not summarily impose a sanction; it allowed the issue to develop through the evidence, heard repeated objections, and afforded Appellants a full opportunity to rebut the inference. Unlike *Garcia Pineda*, Appellants presented their expert's contrary opinions, Magill's explanation of the accidental loss, the parties' stipulation, and their own arguments to the jury.

The testimony concerning possible EDR information was likewise fully contested, and the jury was never told that recoverable data necessarily existed. The separate testimony concerning missing scene photographs arose from an established discovery history and was relevant to the reconstruction evidence, while the court expressly excluded the photographs from the adverse-inference instruction. Viewed as a whole, the court's handling of the issue reflects a measured exercise of discretion rather than the wholesale spoliation sanction Appellants portray.

Appellants' closing-argument claims likewise do not warrant a new trial. Most of the challenged remarks were not contemporaneously objected to and therefore must satisfy the demanding four-part standard of *Murphy v. International Robotic Systems, Inc.* The lone challenged financial comment was immediately stopped by the court, and Appellants did not move for mistrial. The remaining statements, viewed in context, either constituted permissible advocacy or were readily curable. Counsel's reference to "human damages" expressly described recognized categories of noneconomic damages rather than the value of human life; the hobbies and left-turn discussions were not Golden Rule arguments; the reference to Plaintiff's "biker community" concerned his social relationships rather than the jury's role as the conscience of the community; and counsel's criticism

of Appellants' comparative-fault and damages positions did not amount to an impermissible attack on their right to defend the case or shift the burden of proof. Considered individually or cumulatively, the challenged remarks fall well short of *Murphy*'s exceptional standard for overturning a verdict based upon unpreserved closing argument.

The trial judge observed the entire proceeding, addressed objections as they arose, and denied Appellants' motion for new trial. Appellants have not shown an abuse of discretion, and the judgment should be affirmed.

ARGUMENT

I. THE TRIAL COURT DID NOT ABUSE ITS DISCRETION IN PERMITTING EVIDENCE CONCERNING THE UNAVAILABLE EVIDENCE OR IN GIVING A LIMITED, PERMISSIVE ADVERSE-INFERENCE INSTRUCTION AS TO THE TRUCK AND TRAILER.

A. Standard of Review

A trial court's decision to give an adverse-inference instruction based upon unavailable evidence is reviewed for abuse of discretion. *Wal-Mart Stores East, LP v. Garcia Pineda*, 406 So. 3d 995, 998 (Fla. 3d DCA 2025); *Adamson v. R.J. Reynolds Tobacco Co.*, 325 So. 3d 887, 894 (Fla. 4th DCA 2021). Evidentiary rulings concerning the circumstances surrounding unavailable evidence are likewise reviewed for abuse of discretion. *Golden Yachts, Inc. v. Hall*, 920 So. 2d 777, 780 (Fla. 4th DCA 2006). A trial court abuses its discretion "when the judicial action is arbitrary, fanciful, or

unreasonable," meaning no reasonable jurist "would take the view adopted by the trial court." *Canakaris v. Canakaris*, 382 So. 2d 1197, 1203 (Fla. 1980). To the extent a ruling turns on a pure question of law, review is de novo. *See State Farm Mut. Auto. Ins. Co. v. Williams*, 943 So. 2d 997, 1000 (Fla. 1st DCA 2006).

B. Argument on the Merits

1. Florida law distinguishes the permissive adverse inference given here from the substantially stronger sanctions and presumptions available for spoliation.

Appellants begin by defining "spoliation" as the intentional destruction or concealment of evidence and then treating every consequence associated with unavailable evidence as a spoliation "sanction" governed by the same requirements. Florida law is more nuanced.

Golden Yachts itself recognizes a spectrum of responses to missing evidence. 920 So. 2d at 780–81. In cases involving intentional destruction, severe sanctions may be appropriate; in cases involving negligent or inadvertent loss, courts generally employ evidentiary remedies tailored to the circumstances and prejudice. *Id.* The Florida Standard Jury Instructions likewise recognize a distinction between the permissive adverse inference in Instruction 301.11(a) and the substantially stronger adverse presumption in Instruction 301.11(b).

Instruction 301.11(a) provides that if the jury finds that a party lost, destroyed, or otherwise caused evidence to become unavailable while within that party's possession, custody, or control, and that the evidence would have been material in deciding the disputed issues, the jury "may, but [is] not required to," infer that the missing evidence would have been unfavorable to that party. Fla. Std. Jury Instr. (Civ.) 301.11(a). The Notes on Use expressly state that this inference "does not rise to the level of a presumption." *Id.*, note 2.

Instruction 301.11(b), which embodies the burden-shifting *Valcin* presumption, applies only after the court determines that the party had a duty to maintain or preserve the missing evidence and that its absence hinders the opposing party's ability to establish a claim or defense. Fla. Std. Jury Instr. (Civ.) 301.11(b) & note 1; *see Public Health Trust of Dade County v. Valcin*, 507 So. 2d 596, 599–600 (Fla. 1987).

The distinction matters because the trial court did not impose the stronger remedy here. Although Appellee's written motion requested alternative forms of relief, the court did not strike Appellants' comparative-negligence defense, exclude their expert, establish a fact conclusively, direct a finding against Appellants, or shift any burden of proof. It ultimately gave only the permissive instruction contained in 301.11(a).

Adamson is particularly instructive concerning that instruction. The court first recited *Golden Yachts*' three threshold questions, including whether the missing evidence was "critical to an opposing party being able to prove its prima facie case or a defense." 325 So. 3d at 894. When the court addressed that third inquiry, however, it described the question as "whether the missing evidence was material to the other party's claim or defense." *Id.* at 895. The court further explained that there must be "some showing indicating that the destroyed evidence would have been relevant to the contested issue," while cautioning courts not to require too specific a showing about what unavailable evidence would have revealed. *Id.* at 895–96. In applying Instruction 301.11(a), the court held that entitlement required a factual proffer from which the jury could find that the missing evidence "would have been material in deciding a disputed issue in the case." *Id.* at 896.

Adamson did not state that "materiality" and *Golden Yachts*' "critical" requirement are different standards, and this Court need not resolve any semantic distinction between them. What *Adamson* demonstrates is that the inquiry focuses upon the importance of the missing evidence to the disputed issues actually being tried. Indeed, the plaintiff in *Adamson* specifically argued that the missing medical records did not prevent R.J.

Reynolds from presenting its defense. *Id.* at 892. The Fourth District nevertheless upheld the instruction because testimony from both sides' medical experts concerning the missing records permitted the jury to find that those records were material to the disputed issues, including whether the decedent had primary lung cancer. *Id.* at 896. Thus, the mere existence of other evidence permitting a party to proceed does not, standing alone, resolve whether the missing evidence was material to the disputed issue.

Adamson also resolves Appellants' suggestion that a formal preservation duty is an indispensable prerequisite to the permissive inference. Relying on *League of Women Voters of Florida v. Detzner*, 172 So. 3d 363 (Fla. 2015), and *Golden Yachts*, *Adamson* held that an adverse inference may arise even in the absence of a formal duty to preserve evidence. 325 So. 3d at 895. A preservation duty remains important to the stronger adverse-presumption analysis; it is not an absolute prerequisite to the permissive inference.[1]

Finally, Appellants' reliance on older statements that an adverse-inference instruction is "strong medicine" or invades the province of the jury

[1]Appellants themselves acknowledge this distinction. Although they initially recite *Golden Yachts*' three-part formulation, they also expressly recognize under *Adamson*, "an adverse inference may arise even in the absence of a duty to preserve evidence." Initial Br. at 36.

does not establish error. *Adamson* addressed that contention directly and explained that the present standard instruction is carefully worded to preserve the jury's role. *Id.* at 897–98. The jury decides whether the evidence became unavailable while within a party's possession or control, whether the evidence was material, and whether any unfavorable inference should follow. The instruction decides none of those factual questions for the jury. That is precisely the limited instruction the trial court gave here.

2. The record supplied a sufficient factual basis for the jury to determine whether the unavailable truck and trailer were material to the disputed comparative-fault issue.

The existence and subsequent unavailability of the physical evidence were not speculative. The 2006 Ford F-250 and 2009 trailer were involved in the June 21, 2021 collision and remained under Magill's possession and control afterward. Ten days later, Appellant's counsel sent a written preservation request expressly asking that the vehicle and trailer be preserved for inspection, together with related evidence. (R. 689). Magill acknowledged receiving the letter. (A. 1170).

Even though *Adamson* establishes that a formal preservation duty is unnecessary for a 301.11(a) inference, the written request remains highly relevant to the circumstances of the loss. *Compare Osmulski v. Oldsmar*

Fine Wine, Inc., 93 So. 3d 389, 392–93 (Fla. 2d DCA 2012) (recognizing the significance of an express written preservation request in determining whether otherwise routinely lost evidence should have been maintained). Unlike a case in which a defendant had no notice that particular evidence might be needed, Magill here received a written request specifically identifying the truck and trailer within ten days of the collision.

The parties ultimately stipulated to the essential preservation history. The jury was told that: (1) "the defendants received plaintiff's July 1st, 2021, letter of notice of duty to maintain and preserve the subject truck, the trailer and the data"; (2) "the defendants subsequently failed to preserve the truck, the trailer and the data when it was inadvertently totalled in a subsequent March 31, 2022, accident"; and (3) "the plaintiff did not request to inspect the vehicle or release the preservation duty prior to the March 31, 2022, accident." (A. 1325–26).

The remaining question was the significance of the unavailable evidence to the issues actually in dispute. Appellants had already admitted their own negligence and admitted that the collision caused permanent injuries to Mr. Tison's right hand and arm and injuries to his knee. (R. 472, 652, 688). The principal remaining liability issue was Appellants' affirmative defense that Plaintiff himself was comparatively negligent. That issue

turned substantially upon accident reconstruction: Plaintiff's speed, his braking, the time and distance available for avoidance, the path of the truck and trailer across his lane, and the mechanics of the eventual impact.

Appellee's reconstruction expert testified that because the trailer was unavailable he could not physically examine it or obtain certain measurements that could have been incorporated into his analysis. (A. 648–52). He further testified that additional vehicle information, if available, could have assisted his evaluation. (A. 682–85). Appellants' reconstruction expert disagreed and testified that physical examination of the trailer would have provided no meaningful advantage over the existing photographs and that he did not need additional vehicle evidence to reach his opinions. (A. 1091–96, 1114–16).

That disagreement did not require the trial court to accept Appellants' expert's view and remove the issue from the jury. It supplied the jury with competing testimony from which to decide whether the unavailable evidence mattered to the comparative-fault dispute. That is consistent with *Adamson*, where the competing experts' testimony supplied a sufficient basis for the jury to decide whether the unavailable medical records were material. 325 So. 3d at 896.

Nor does Plaintiff's ability to litigate the case through other evidence compel a different result. Plaintiff did not contend that the absence of the truck and trailer made trial impossible. The question was whether that evidence was sufficiently significant to the disputed comparative-fault issue to support submission of a permissive inference. Both reconstruction experts were allowed to answer that question, and the jury remained free to agree with Appellants that the evidence would have added nothing.

3. Appellants' "equal footing" authorities do not establish that the limited adverse-inference instruction was improper.

Appellants contend that Appellee suffered no prejudice because neither side was able to inspect the truck or trailer and both reconstruction experts were nevertheless able to offer opinions concerning comparative negligence. At the charge conference, Appellants argued that "both experts were on the same footing," that neither had examined the trailer or obtained black-box information, and that the defense therefore gained no evidentiary advantage from the loss. (A. 1274). They rely on *Fleury v. Biomet, Inc.*, 865 So. 2d 537 (Fla. 2d DCA 2003), *Derosier v. Cooper Tire & Rubber Co.*, 819 So. 2d 143 (Fla. 4th DCA 2002), *Aldrich v. Roche Biomedical Laboratories, Inc.*, 737 So. 2d 1124 (Fla. 5th DCA 1999), and *Landry v. Charlotte Motor*

Cars, LLC, 226 So. 3d 1053 (Fla. 2d DCA 2017). Those cases do not compel reversal.

In *Fleury*, a nonparty hospital discarded the allegedly defective artificial knee within hours of its removal, before either litigant had an opportunity to examine it. 865 So. 2d at 538. The court emphasized that neither party was responsible for the loss and that both were left in the same evidentiary position. *Id.* at 540. More importantly, the sanction effectively prevented the plaintiffs from proving causation and resulted in summary judgment. *Id.* at 539–40. *Derosier* and *Aldrich* likewise involved case-dispositive consequences based upon evidence neither side could examine. *Landry* addresses the showing necessary to justify dismissal, "the harshest of all sanctions." 226 So. 3d at 1058.

The circumstances here were materially different. The truck and trailer remained in Magill's possession after the collision and after he received Appellee's written request that they be preserved for inspection. And the trial court imposed nothing resembling the sanctions at issue in Appellants' authorities. It did not dismiss a claim, strike a defense, exclude a witness, establish a fact, or shift the burden of proof. It gave only a permissive instruction that allowed the jury to draw no inference at all.

Nor did the fact that both experts ultimately lacked access to the physical evidence establish that the evidence itself was immaterial. Plaintiff's expert testified that examination of the unavailable truck and trailer could have provided additional information relevant to the reconstruction; Appellants' expert disagreed. The parties' competing views created a factual dispute concerning the significance of the unavailable evidence, not a legal determination that its absence caused no prejudice simply because neither side possessed it.

Appellants were free to, and did, use the "equal footing" circumstances as a reason for the jury to reject the inference. Montalbano testified that physical inspection would have supplied no meaningful benefit, Magill explained the accidental loss, and the jury was expressly told that Plaintiff had not requested an inspection before the March 31, 2022 accident. (A. 1091–96, 1170–74, 1325–26). The permissive instruction left the jury free to accept Appellants' position and draw no unfavorable inference.

Thus, Appellants' "equal footing" theory was a matter the jury could consider in deciding whether to draw the inference; their cited cases do not establish that the trial court was required to withhold the issue from the jury altogether.

4. Appellee did not waive the preservation issue merely because he did not request a voluntary presuit inspection before the subsequent accident.

Appellants repeatedly emphasize that 1,294 days elapsed between Plaintiff's July 1, 2021 preservation letter and his January 15, 2025 request to inspect the truck and trailer. That calculation obscures the relevant chronology.

The truck and trailer did not remain available for those 1,294 days. The parties stipulated that they became unavailable in the March 31, 2022 subsequent accident. (A. 1325–26). Thus, the relevant period between the written preservation request and the event that rendered the evidence unavailable was approximately nine months.

Suit was not filed until March 2023. By the time Appellee possessed compulsory discovery mechanisms through which to demand inspection of Defendants' property, the evidence had already been unavailable for nearly a year. A Rule 1.350 inspection request served immediately after suit was filed could not have restored a truck and trailer lost before the litigation began.

Before suit, however, Plaintiff had expressly requested that the truck and trailer be preserved for inspection. (R. 689). Nothing in the record

establishes that Plaintiff withdrew or abandoned that request before the evidence became unavailable. To the contrary, the parties stipulated that Plaintiff had not "release[d] the preservation duty prior to the March 31, 2022 accident." (A. 1325–26).

Appellants' reliance on *Popular Bank of Florida v. R.C. Asesores Financieros, C.A.*, 797 So. 2d 614, 619 (Fla. 3d DCA 2001), does not change the analysis. Waiver involves an intentional or voluntary relinquishment of a known right. The mere failure to arrange an earlier voluntary presuit inspection is not equivalent to intentionally withdrawing an existing preservation request, especially where the parties expressly stipulated that no release occurred before the loss. Furthermore, *Popular Bank* states that the issue of waiver is "one for the fact finder." *Id.*

Appellants nevertheless were permitted to emphasize Plaintiff's failure to arrange inspection before the subsequent accident and to argue that he could have acted sooner. But that factual argument against drawing an inference did not legally erase the written preservation request.

5. The timing of Appellee's motion did not deprive Appellant's of a fair opportunity to contest the issue.

Plaintiff filed his written Motion for Spoliation Instruction and Sanctions on April 6, 2025, the evening before trial. (R. 707–15). Plaintiff

had learned in January 2025 that the truck and trailer were unavailable, and the trial court's scheduling order required motions to be filed and heard before the March 18, 2025 pretrial conference. The motion was filed after the pretrial conference contemplated by the scheduling order. That circumstance, however, does not resolve the question on appeal: whether the trial court abused its discretion in the manner it ultimately handled the requested instruction.

It did not summarily impose a sanction on the morning of trial. Indeed, when the issue was first discussed at the end of the second trial day, the court expressed concern about timeliness and deferred a final ruling. (A. 618–24). The next morning, the court again heard Appellants' arguments concerning Plaintiff's delay, lack of intentional destruction, the asserted lack of prejudice, and the fact that the motorcycle struck the trailer rather than the truck. (A. 633–35).

That procedure is also consistent with the nature of jury instructions. Rule 1.470(b) contemplates that requested instructions may be submitted through the close of the evidence and that the court will settle the instructions in light of the evidence actually presented at trial. The earlier scheduling order gave the court ample reason to scrutinize the late request,

but it did not require the judge to submit an incomplete or legally incorrect set of instructions once the evidentiary issue was developed.

Most importantly, Appellants were not deprived of the ability to respond. They knew the history of their own vehicle and preservation letter; possessed their own reconstruction expert; cross-examined Plaintiff's expert; presented Magill's explanation; negotiated the stipulation; repeatedly objected to the instruction; and argued at length to the jury why no inference should be drawn.

That distinguishes *Garcia Pineda*.

6. Garcia Pineda confirms the importance of a meaningful opportunity to rebut the inference, an opportunity Appellants received here.

In *Garcia Pineda*, the plaintiff raised a years-old allegation of spoliation during trial, and the court gave Walmart only a brief opportunity to respond before finding spoliation and giving an adverse-inference instruction. 406 So. 3d at 997–1001. The Third District reversed on two independent grounds: the necessary factual predicate was lacking, and Walmart was denied the ability to present evidence to the jury rebutting what was supposed to be a permissive inference. *Id.*

The second holding is particularly instructive here. A 301.11(a) inference remains genuinely permissive only if the affected party can

present the evidence and arguments showing why the jury should reject it. *Id.* By prohibiting Walmart from doing that, the trial court in *Garcia Pineda* transformed the nominally permissive inference into a de facto adverse determination.

Nothing comparable occurred here. Appellants' expert testified that neither side was disadvantaged by the absence of the physical truck and trailer and that an inspection would not have altered his reconstruction. (A. 1091–96, 1114–16). Magill testified that the later loss was accidental and explained how the subsequent crash occurred. (A. 1174). The parties' own stipulation told the jury that the truck and trailer were "inadvertently" totaled and that Plaintiff had not sought an inspection before the subsequent accident. (A. 1325–26).

Defense counsel then relied on those facts in closing argument. Counsel argued that Plaintiff could have sought inspection or downloaded data sooner, that Magill did not intentionally wreck the truck he used for work, that neither expert possessed the truck, trailer, or black-box data, and that "both experts were on the same footing." (A. 1395-96). Counsel also argued that the missing materials did not prejudice Plaintiff and that the jury should draw no inference. (A. 1396).

Thus, Appellants presented to the jury essentially the same theories they now advance on appeal: Plaintiff waited too long; the later collision was accidental; the missing evidence was immaterial; and neither side gained an advantage from its absence.

Being required to answer a permissive inference is not the deprivation condemned in *Garcia Pineda*. The error there was that Walmart was not allowed to answer it. Here, Appellants were.

7. The admission of testimony concerning the truck's electronic data recorder did not make the trial unfair.

Appellants separately argue that the trial court should not have permitted testimony concerning the F-250's electronic data recorder—referred to at trial as the "black box"—because Plaintiff could not establish that it actually contained recoverable information from this collision.

Plaintiff's expert did not testify that usable EDR data definitely existed. He testified that there was a possibility the vehicle recorded information concerning the event and that, had usable data been recorded and preserved, it could have supplied additional information for his reconstruction. (A. 682–85). He candidly acknowledged that he did not know whether the recorder actually captured this event. (A. 700).

Appellants were permitted to present the opposite opinion in detail. Montalbano testified that no useful event data would have remained because the truck's airbags did not deploy and because the recorder continuously overwrote information unless an event caused it to lock. (A. 1114–16, 1181–84). He further explained why the fact that the motorcycle struck the trailer, rather than the truck itself, made a useful recorded event still less likely. (A. 1114).

The jury therefore was never presented with an uncontested proposition that Defendants had destroyed known black-box data. It heard two experts explain their differing views.

The uncertainty concerning what, if anything, an examination of the unavailable vehicle would have revealed did not itself require exclusion of the issue. In *Adamson*, the Fourth District recognized that "the problem with destroyed evidence is that it is unavailable and thus unknowable." 325 So. 3d at 897. The court explained that the purpose of Instruction 301.11(a) is to permit, but not require, the jury to resolve the resulting uncertainty against the party responsible for the unavailable evidence, and that the materiality of the missing evidence remains a jury question. *Id.* That principle does not eliminate the need for an evidentiary basis from which materiality can be found; it simply recognizes that a party cannot be

required to prove with certainty the precise contents of evidence that can no longer be examined.

Even if, as Appellants contend, the jury associated the onboard recorder with the “truck” referenced in the instruction, the instruction did not tell the jury that recoverable EDR information actually existed. It required the jury first to determine that the unavailable evidence was material and then told the jury that it may, but was not required to, draw an inference. (A. 1330).

Accordingly, the jury remained free to accept Montalbano’s testimony, conclude that no useful data ever existed, and give the EDR issue no weight whatsoever.

Nor was expert testimony concerning potential vehicle data irrelevant merely because the experts disagreed about whether information had been captured. The materials available or unavailable to a reconstructionist bear upon the basis and limitations of the expert’s analysis. Plaintiff’s expert explained what additional information potentially could have assisted him; Appellants’ expert explained why, in his opinion, it could not. That was a legitimate expert dispute for the jury to assess.

Any potential prejudice was also mitigated by Appellants’ ability to present their evidence and argue the matter fully. Montalbano’s testimony

gave the jury a concrete technical reason to reject any suggestion that useful EDR information had been lost.

The admission of the competing EDR testimony therefore did not convert the trial into an impermissible sanction proceeding.

8. The trial court properly permitted testimony concerning the missing scene photographs, while expressly excluding those photographs from the adverse-inference instruction.

Appellants also devote substantial attention to Magill's missing photographs of the accident scene, arguing that the July 1, 2021 preservation letter specifically referred to "photographs of the damage to the vehicle" rather than photographs of the roadway or skid marks. That argument overlooks the subsequent discovery history. In Plaintiff's first request for production, served May 1, 2023, Plaintiff expressly requested "[a]ll photographs of the scene of the accident, including any aerial photographs." (R. 69-71). Defendants responded on October 30, 2023: "None in possession." (R. 141-142).

At Magil's February 16, 2024 deposition, however, he testified that he had taken photographs at the scene and that they were probably on his old cellular telephone. (R. 1469-1470). When asked whether he could provide them, he indicated that doing so would be "no problem," and he further

testified that he thought he had already supplied the photographs to his attorney. (R. 1469-1470). The photographs were never produced.

At trial, Magill explained that he had taken photographs of the scene, including potential skid marks, but that the photographs were lost when his old phone was traded in and they failed to transfer to the replacement device. (A. 1167–69, 1174–75). He denied intentionally destroying them. (A. 1184).

Thus, the subject did not first appear unexpectedly in the middle of trial. Plaintiff had expressly requested the scene photographs in formal discovery approximately two years earlier. Defendants responded that none were in their possession. Magill later acknowledged that he had taken them and indicated that they could be supplied. That history supplied a legitimate basis for questioning the witnesses concerning whether the photographs existed, whether either reconstruction expert had seen them, and what information they might have contained.

Their relevance was also established independently by Appellants' own reconstruction expert. Montalbano acknowledged that photographs showing skid marks could have helped establish braking distance and the area of impact and could have refined his calculations. (A. 1120–22).

At the same time, the trial court drew a clear distinction between allowing relevant testimony concerning the photographs and authorizing a formal adverse inference from their loss. During the charge conference, the court expressly ruled that the instruction would be limited "to just the truck and the trailer and not any reference to photos." (A. 1286). The final instruction complied with that limitation. (A. 1330).

That ruling reflects restraint, not abuse of discretion. The court allowed testimony concerning evidence Plaintiff had specifically requested in discovery, whose existence Magill later acknowledged, and whose usefulness Appellants' own expert confirmed. But it declined to authorize a formal adverse inference concerning the photographs themselves.

9. Appellants have not shown reversible error from the timing of the trial court's spoliation determination.

Appellants correctly identify *Golden Yachts* as authority addressing the threshold considerations relevant to spoliation. They then go further, however, and contend that the trial court was required to resolve those matters outside the jury's presence before permitting any testimony concerning the unavailable evidence. The cited cases do not establish that procedural requirement.

Golden Yachts is nevertheless instructive for different reasons. It held that once the factual predicate supports an adverse-inference instruction, evidence concerning the unavailable evidence and the circumstances surrounding its loss may also be presented to the jury. 920 So. 2d at 780–81. The court expressly rejected the contention that the trial court must choose between admitting spoliation evidence and giving an adverse-inference instruction. *Id.* Nothing in *Golden Yachts* holds that all such testimony must be withheld from the jury until the trial court formally announces its ultimate ruling on the instruction.

Even assuming the trial court should have resolved the instruction earlier, Appellants have not shown prejudice from the timing. After hearing the evidence and the parties' arguments, the court ultimately determined that the limited adverse-inference instruction was warranted. (A. 1286, 1330). At that point, *Golden Yachts* confirms that the jury properly could consider evidence concerning the unavailable truck and trailer and the circumstances of their loss in deciding whether the conditional inference should be drawn. 920 So. 2d at 780–81. Thus, the evidence Appellants characterize as having reached the jury prematurely was not evidence that the jury was ultimately prohibited from considering; it was evidence supporting an instruction the court ultimately gave.

The timing therefore supplies no independent basis for a new trial unless Appellants can identify evidence that reached the jury because of the delayed ruling but would not otherwise have been admissible and demonstrate resulting prejudice.

As to the scene photographs, the testimony was independently relevant to the experts' reconstruction opinions and arose from an existing discovery history acknowledged by Magill concerning photographs he had taken. The court nevertheless excluded the photographs from the adverse-inference instruction. (A. 1286). Appellants therefore have not shown that the timing of the ruling caused otherwise inadmissible photograph evidence to reach the jury.

10. The limited instruction ultimately given demonstrates the trial court's careful exercise of discretion.

The actual course of the trial is inconsistent with Appellants' portrayal of a court that simply permitted "spoliation to permeate" the proceedings. Plaintiff requested alternative and substantially stronger forms of relief. The court did not grant them wholesale. Instead, it allowed the relevant evidence to develop; sustained objections when Plaintiff's questioning suggested intentional destruction not supported by the record; ensured that Magill could explain the accidental subsequent loss; permitted Appellants'

expert to dispute materiality; allowed Appellants to argue Plaintiff's delay and lack of prejudice; excluded the scene photographs from the instruction; declined to shift the burden of proof; and accepted a jointly negotiated stipulation informing the jury that the subsequent loss was inadvertent.

Only after that process did the court instruct:

> If you find that the defendants destroyed or otherwise caused the subject Ford F250 truck and trailer to be unavailable while it was in their possession, custody or control and the truck and trailer would have been material in deciding the disputed issues in this case, then you may but are not required to do so infer that this evidence would have been unfavorable to the defendants. You may consider this together with the other evidence in determining the issues in this case.

(A. 1330).

The instruction did not tell the jury that spoliation had occurred. It did not tell the jury that the evidence was material. It did not tell the jury that Defendants acted intentionally or in bad faith. It did not mention the scene photographs. It did not expressly direct an inference concerning EDR data. And it did not require an inference at all.

Instead, it left the factual predicates and the ultimate inference to the jury after both parties had presented their competing evidence and arguments. Under *Golden Yachts* and *Adamson*, the trial court did not abuse its discretion in selecting that limited remedy.

II. THE TRIAL COURT DID NOT ABUSE ITS DISCRETION IN DENYING A NEW TRIAL BASED ON UNPRESERVED OR CURABLE CLOSING-ARGUMENT COMPLAINTS

A. Standard of Review

A trial court's ruling on a motion for new trial based upon allegedly improper closing argument is reviewed for abuse of discretion. *Murphy v. International Robotic Systems, Inc.*, 766 So. 2d 1010, 1030–31 (Fla. 2000). That deferential review recognizes that the trial judge, who heard the argument in context and observed its effect upon the jury, occupies the superior vantage point for determining whether challenged advocacy affected the fairness of the proceeding. *Id.*

B. Argument on the Merits

1. Because Appellants did not preserve the challenged arguments, *Murphy* governs their request for a new trial.

With the exception of the pharmacy/benefits comment, Appellants did not contemporaneously object to the statements they now characterize as improper "human damages," Golden Rule, conscience-of-the-community, denigration, and burden-shifting arguments.

Under *Murphy*, unobjected-to closing argument warrants a new trial only in the exceptionally narrow circumstance in which the complaining party establishes all four of the following: the argument was (1) improper, (2) harmful, (3) incurable, and (4) so damaging to the fairness of the

proceeding that the public's interest in the justice system requires a new trial. 766 So. 2d at 1028–31. The Florida Supreme Court emphasized that the final category is necessarily narrow and that even improper comments ordinarily do not satisfy it. *Id.*

This Court has applied that standard strictly. In *Ring Power Corp. v. Rosier*, 67 So. 3d 1115, 1119–20 (Fla. 1st DCA 2011), this Court reversed an order granting a new trial where the challenged closing argument had not been properly preserved and did not satisfy *Murphy*. A party cannot wait to see the verdict and then obtain a second trial based upon rhetoric that could have been addressed immediately through an objection and curative instruction.

The same preservation principle applies where an objection is sustained. *Companioni v. City of Tampa*, 51 So. 3d 452, 456 (Fla. 2010), holds that when a party objects to attorney misconduct and the objection is sustained, the party must timely move for mistrial if it believes the corrective action is inadequate in order to preserve the alleged misconduct as a basis for a new trial. Otherwise, the claim is analyzed under *Murphy*.

Here, when Appellants objected to the pharmacy/benefits comment, the court directed Plaintiff's counsel to take the demonstrative down and

not repeat the argument. (A. 1407–08). Appellants did not move for mistrial. (A. 1407-08). That issue therefore also falls within *Murphy*.

Appellants' reliance on older cases involving "fundamental error" or cumulative misconduct does not avoid the governing standard. Several authorities cited in the Initial Brief—such as *Riley v. Willis*, *Stokes v. Wet 'N Wild, Inc.*, *Pippin v. Latosynski*, and *Sacred Heart Hospital of Pensacola v. Stone*—predate *Murphy*. The Florida Supreme Court in *Murphy* expressly imposed a uniform four-part standard for unpreserved civil closing argument and disapproved prior district-court decisions to the extent they permitted relief inconsistent with that framework. 766 So. 2d at 1027–31. Appellants' reliance on criminal decisions such as *Slagle* and *Freeman* likewise does not displace the civil standard mandated by *Murphy*.

Accordingly, Appellants must do much more than identify forceful or even arguably improper phrases. They must establish that each challenged category of unpreserved argument was harmful, could not have been cured by a contemporaneous objection, and was of the extraordinary character necessary to undermine public confidence in the judicial process.

They cannot do so.

2. The pharmacy/benefits comment was immediately stopped and cannot satisfy *Murphy*.

Appellants' only contemporaneously challenged argument concerned Tison's loss of employment benefits and a later reduction in medical treatment.

Defense counsel had relied upon Tison's pharmacy history to argue that the evidence showed pain medication after the accident but not during a later period. (A. 1391). In responding, Tison's counsel stated that Tison lost his job in March 2022, lost his state benefits, and thereafter his doctor appointments appeared to slow. (A. 1407).

Appellants objected. The court immediately intervened, directed counsel to remove the demonstrative, and instructed him not to repeat the argument. (A. 1407–08). Counsel complied.

Read in context, the challenged remark was made in response to Appellants' reliance on Tison's pharmacy history and later reduction in treatment. Counsel did not ask the jury to award damages because Tison was poor or unable to afford medical care. In any event, when Appellants objected, the court immediately directed counsel to remove the demonstrative and not repeat the argument, and counsel complied. (A. 1407–08).

That circumstance is markedly different from *Hollenbeck v. Hooks*, 993 So. 2d 50 (Fla. 1st DCA 2008), and *Samuels v. Torres*, 29 So. 3d 1193 (Fla. 5th DCA 2010). In *Hollenbeck*, counsel misleadingly contrasted an individual defendant with a "fancy company" or conglomerate in a manner that suggested the individual would personally bear the verdict; the opposing party immediately moved for mistrial and repeatedly renewed the motion. 993 So. 2d at 51. In *Samuels*, defense counsel deliberately disclosed the defendant's meager income, a juror actually began to cry, and the ultimate damages verdict tracked an unsupported compromise that the appellate court found explicable only by the improper sympathy appeal. 29 So. 3d at 1195–97.

Nothing comparable occurred here. Counsel did not tell the jury that Plaintiff was poor, ask the jury to compensate him because he could not afford treatment, contrast the parties' relative wealth, or make inability to pay a recurring theme. The challenged statement was brief, the court immediately stopped it, and counsel moved on.

Most importantly under *Murphy*, the argument was plainly curable—because the trial judge actually curtailed it when Appellants objected. If Appellants believed the court's immediate intervention was inadequate,

Companioni required them to seek a mistrial. They did not. The isolated pharmacy/benefits comment does not warrant a new trial.

3. Counsel's references to "human damages" concerned the legally recoverable elements of noneconomic damages, not the monetary value of Plaintiff's life.

Appellants next characterize counsel's use of the phrase "human damages" as an impermissible "value of human life" argument. The context refutes the characterization.

> Counsel stated:
>
> "Now, noneconomic damages, these are the human damages that we talk about. This is for pain, for suffering, for disability, physical impairment, disfigurement, mental anguish, inconvenience or loss of the capacity for the enjoyment of life."
>
> (A.1375–76).

Those are recognized elements of compensatory noneconomic damages. Counsel did not ask the jury to determine the monetary value of Plaintiff's existence. He did not compare a human life to paintings, buildings, airplanes, rescue operations, or other valuable objects. He did not ask the jury what Plaintiff's life itself was worth.

That distinction is the very one recognized by the cases Appellants cite. A prohibited "value of human life" argument asks the jury to assign a monetary value to a person's life because life itself is not an element of

compensatory damages. *See Wilbur v. Hightower*, 778 So. 2d 381, 383 (Fla. 4th DCA 2001); *City of Orlando v. Pineiro*, 66 So. 3d 1064, 1070 (Fla. 5th DCA 2011). In *Pineiro*, for example, counsel expressly analogized human life to the resources society spends rescuing a person lost at sea. *Id.* Counsel here did nothing of the kind.

Indeed, the principal passage Appellants quote themselves demonstrates what counsel meant by "human damages": pain, suffering, impairment, disability, disfigurement, mental anguish, inconvenience, and lost enjoyment of life. (A. 1375–76).

Calling recognized noneconomic damages "human damages" may be rhetorical, but rhetoric is not the same as asking a jury to place a price on human life.

There was also no contemporaneous objection. Thus, even if the Court regarded the phrase as imprecise, Appellants would still have to establish that it was harmful, incurable, and so destructive of the fairness of the trial that public confidence requires a new trial. *Murphy*, 766 So. 2d at 1028–31. A phrase immediately accompanied by an accurate enumeration of recoverable damages cannot satisfy that standard.

4. Counsel did not make a prohibited Golden Rule argument

Appellants identify two passages as Golden Rule argument: counsel's discussion of hobbies and activities important to people generally and his request that jurors consider what constitutes a "normal left-hand turn." Neither passage asked jurors to place themselves in Plaintiff's position for purposes of fixing damages.

In discussing loss of enjoyment of life, counsel observed that people commonly have activities important to them—golf, fishing, kayaking, hunting, or some other pursuit—and explained that losing an activity one values naturally makes returning to it an important goal. (A. 1349–50). The point was tied to evidence concerning Plaintiff's motorcycle riding and the compensable loss of enjoyment of life.

The second passage is still further removed from a Golden Rule argument. Counsel stated that jurors could consider "what is a normal left-hand turn" and whether a vehicle making such a turn ordinarily stops absent some reason to do so. (A. 1356). That argument concerned the factual reconstruction and comparative-fault theory, not an invitation to assume the role of either litigant. Jurors are routinely permitted to apply common sense and ordinary experience in evaluating evidence.

The absence of a contemporaneous objection is significant. If Appellants believed either passage improperly invited personal identification with Plaintiff, an objection would have allowed the trial judge to correct the wording immediately. The very availability of such an ordinary cure defeats Murphy's incurability requirement.

5. Counsel's reference to Plaintiff's "biker community" was not a "conscience of the community" argument

Appellants also transform counsel's use of the word "community" into a *Blue Grass Shows* argument. The context demonstrates otherwise.

Counsel discussed the social component of Mr. Tison's motorcycle riding, explaining that the "biker community is a community" and analogizing it to the friends and social relationships people may develop around fishing or other hobbies. (A. 1367). That argument addressed Plaintiff's loss of enjoyment and the social dimension of an activity affected by his injuries.

A "conscience of the community" argument is fundamentally different. It asks jurors to act as representatives of their geographic or civic community, to protect the public, to establish community standards, punish an outsider, or send a message through the verdict.

Blue Grass Shows, Inc. v. Collins, 614 So. 2d 626 (Fla. 1st DCA 1993), illustrates the difference. There, counsel explicitly told jurors that they were "the conscience of the community" and that their verdict would tell an amusement operator what level of protection the citizens of Jacksonville demanded. *Id.* at 627. This Court condemned the argument but nevertheless affirmed where the issue had not been properly preserved and the argument did not warrant reversal. *Id.* at 627–28.

Counsel here never told jurors that they represented Gainesville, Alachua County, motorcyclists, or any broader public. He did not ask them to establish a community standard, protect others, punish Defendants, or send a message. The mere fact that Plaintiff participated in a social "community" connected with a hobby does not convert an argument about his own loss of enjoyment into a civic call to action.

6. Counsel's criticism of Appellants' comparative-fault and damages positions did not deprive Appellants of a fair trial

Appellants characterize counsel's references to "full accountability" as an attack on their right to assert comparative negligence and contest damages. Read in context, however, counsel was criticizing the substance of the positions Appellants were asking the jury to accept, not their right to defend the action.

The challenged argument contrasted Appellants' admitted negligence and causation with their contention that Tison nevertheless bore comparative fault for failing to avoid the collision. Counsel likewise challenged Appellants' positions that Tison should retrain for different employment and that the evidence supported lower future-medical and noneconomic damages. (A. 1378, 1383, 1413–16). Those were issues the jury was required to decide. Counsel was entitled to argue that the evidence did not support Appellants' positions and to ask the jury for "full reimbursement" of the compensatory damages established by the evidence.

That argument differs materially from the authorities Appellants cite. Counsel did not criticize Appellants for hiring lawyers, requiring Tison to file suit, refusing to settle, or exercising their right to a trial. Nor did counsel ask the jury to punish Appellants for defending the case. *Compare Allstate Insurance Co. v. Marotta*, 125 So. 3d 956, 958–61 (Fla. 4th DCA 2013), where counsel repeatedly urged the jury to make the insurer "repent," criticized it for failing to accept responsibility and fairly pay the claim before trial, invoked the disparity between the individual plaintiff and a powerful insurance company, and coupled those arguments with other improper conduct. Likewise, *Carnival Corp. v. Pajares*, 972 So. 2d 973, 977–79 (Fla.

3d DCA 2007), involved repeated suggestions that the defendant acted improperly merely by contesting the claim, together with numerous other preserved errors whose cumulative effect required reversal.

Kinser further demonstrates the distinction between an improper criticism of a valid defense and reversible closing-argument error. There, the defendant's only defense was comparative negligence, and the court concluded that portions of plaintiff's closing improperly denigrated that defense. Nevertheless, it affirmed the denial of a new trial because the comments, considered in context, did not deprive the defendant of a fair trial; the court further held that the unobjected-to improper remarks did not satisfy *Murphy*. *City of Miami v. Kinser*, 187 So. 3d 921, 923–26 (Fla. 3d DCA 2016).

Here, Appellants made no contemporaneous objection to the "full accountability" argument. Thus, even if this Court concludes that some phrasing improperly characterized Appellants' defense, that is only the first step. Under *Ring Power* and *Murphy*, Appellants must establish that the unobjected-to argument was also harmful, incurable, and so damaging to the fairness of the trial that the public's interest in the justice system requires a new trial. *Ring Power Corp. v. Rosier*, 67 So. 3d 1115, 1117–18

(Fla. 1st DCA 2011); *Murphy*, 766 So. 2d at 1028–31. They cannot make that showing.

Any perceived suggestion that Appellants were being criticized for asserting a defense could readily have been corrected by a contemporaneous objection and instruction directing counsel to confine the argument to the evidence and lawful compensatory damages. that the cumulative effect did not deprive the City of a fair trial.

The jury was never asked to punish Appellants, and no punitive-damages issue was submitted. Counsel ultimately asked for "full reimbursement" for the losses the evidence allegedly established. Viewed in context—or, alternatively, under the demanding standard governing an unpreserved objection—the challenged argument provides no basis for a new trial.

7. Counsel did not improperly shift the burden of proof.

Appellants combine their denigration argument with a contention that Plaintiff shifted the burden of proof by commenting on the evidence Appellants did not present and by noting that Plaintiff called Dr. Lowell despite his connection to the defense.

That contention overstates both the remarks and the burden structure of the case. Plaintiff bore the burden of proving his claimed damages. But

Appellants, not Plaintiff, bore the burden of proving their affirmative defense of comparative negligence. The jury was instructed on those respective burdens. Thus, Appellants' broad reliance on cases stating that a civil plaintiff always bears the burden does not resolve the specific issues actually submitted to this jury.

Nor is every comment concerning an opponent's evidentiary presentation an improper burden shift. Civil counsel is afforded substantial latitude to comment on the state of the record and the absence of evidence rebutting testimony actually presented. *Gianos v. Baum*, 941 So. 2d 581, 584–85 (Fla. 4th DCA 2006), is instructive. There, the court held that plaintiff's counsel should have been permitted to point out in closing that the defense had not presented testimony from a pathologist where the comment fairly addressed the state of the evidentiary record. The court distinguished such fair comment from an improper suggestion that the opponent bore the ultimate legal burden.

Here, Dr. Lowell was not a missing witness about whose hypothetical testimony counsel invited speculation. He actually testified. Counsel's statement that Plaintiff "had to call Dr. Lowell" despite his association with the defense commented on the evidentiary circumstance surrounding a witness the jury had heard. (A. 1411). It did not tell jurors that Appellants

were legally required to call a particular witness or that Appellants had to disprove Plaintiff's case.

Similarly, counsel's statement that he had not heard evidence from the defense tying certain proposed damages figures to the actual case was advocacy concerning the evidentiary basis for opposing counsel's suggested figures. (A. 1414). It did not alter the court's burden instructions.

No objection was made, nothing in the challenged remarks altered the court's instructions concerning the parties' respective burdens, and any perceived ambiguity could readily have been addressed through a contemporaneous objection and instruction.

8. The challenged remarks do not cumulatively warrant a new trial.

Appellants cannot avoid *Murphy* by aggregating comments that were either proper, immediately curtailed, or never objected to. The challenged references to "human damages," Plaintiff's hobbies and "biker community," the ordinary left-turn discussion, and Appellants' comparative-fault and damages positions were permissible advocacy when viewed in context. Even if this Court were to regard particular phrasing as improper, Appellants made no contemporaneous objection and have not shown that any resulting prejudice was incurable.

The only challenged financial comment that drew an objection was immediately stopped by the court. (A. 1407–08). And unlike the exceptional cases warranting reversal for closing misconduct, this argument did not include a sustained appeal to punish Appellants, a wealth comparison, a request for punitive damages, or a repeated attack on defense counsel's integrity.

The trial judge heard the argument in context and later rejected these same complaints in denying the motion for new trial. See *City of Miami v. Kinser*, 187 So. 3d 921, 923–26 (Fla. 3d DCA 2016) (affirming denial of new trial despite multiple improper remarks where their cumulative effect did not deprive the defendant of a fair trial). Appellants have not shown that the challenged remarks, individually or collectively, meet the demanding standard for relief under *Murphy*.

CONCLUSION

The record reflects a trial in which the parties vigorously disputed comparative fault and damages, each side presented expert testimony concerning the significance of unavailable evidence, Appellants were permitted to explain and rebut the circumstances surrounding that evidence, and the trial court ultimately selected a narrow, permissive

adverse-inference instruction that left the relevant factual determinations to the jury.

Appellants' closing-argument claims likewise fail to establish reversible error. Most were not contemporaneously preserved; the only challenged financial comment was immediately stopped; and the remaining arguments, viewed in context, either were proper advocacy or fall far short of the exceptional standard required by *Murphy*.

The trial court, having observed the entire proceeding and considered Appellants' motion for new trial, denied that motion. Appellants have not demonstrated an abuse of discretion. The final judgment should be affirmed.

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CERTIFICATE

I HEREBY CERTIFY that on this 15th day of October, 2026, I electronically filed the foregoing and served a true and correct copy via Electronic Mail on opposing counsel for Appellee, Scott A. Cole, Esq., COLE, SCOTT & KISSANE, P.A., 9150 S. Dadeland Boulevard, Suite 1400, Miami, FL 33156; Scott.Cole@csklegal.com; Emily.Fernandez@csklegal.com; Dusty.Robertson@csklegal.com.

I certify that this brief complies with the font requirements of Florida Rule of Appellate Procedure 9.045(b) and the word limit of the applicable rule. This brief contains 11,739 words, excluding the cover page, table of contents, table of authorities, signature blocks, and this certificate. Headings, footnotes, and quotations are included in the count.

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